

CV-25-008440 VELOCITY INVESTMENTS LLC vs MORALES, SYLVIA – Plaintiff's Motion for Judgment on the Pleadings – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The standard for granting a motion for judgment on the pleadings is whether, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. Civ. Proc. Code § 438(c)(1)(A); Apple Annie, LLC v. Oregon Mutual Ins. Co. (2022) 82 Cal. App. 5th 919; Tung v. Chicago Title Co. (2021) 63 Cal. 5th 734, 758-759. Based on the pleadings filed herein, Plaintiff's Complaint, Defendant's Answer, the Moving Papers with supporting declaration, and Defendant's failure to oppose this motion, the Court finds that Plaintiff is entitled to judgement as a matter of law. Civil Procedure Code § 438 (c)(1)(A). Plaintiff's Motion for Judgment on the pleadings is hereby granted for the sum of \$2, 997.60. The referenced Civil Code §§ 2983.4 and 1717 do not support the requested costs. Claimed costs of \$397.60 are therefore denied. Defendant shall submit a Proposed Order no later than July 23, 2026, that conforms to the Court's ruling.

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